

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Kelly Lyon	Team: Squad #11	CCRB Case #: 202306306	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 11/19/2022 6:20 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 5/19/2024	Precinct: 83		
Date/Time CV Reported Wed, 06/28/2023 2:41 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 06/28/2023 2:41 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. PO Emma Larrea	28130	972056	083 PCT
2. PO Elizbeth Torres	28335	972469	083 PCT
3. PO Sandro Tocaciu	09496	972990	083 PCT
4. PO Jeffrey Chin	03412	960366	083 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Oleg Farniev	05062	972631	083 PCT
2. PO Maode Lin	15021	956851	083 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Elizbeth Torres	Abuse: Police Officer Elizbeth Torres entered § 87(2)(b) in Brooklyn.	A . Within NYPD Guidelines
B . PO Emma Larrea	Abuse: Police Officer Emma Larrea entered § 87(2)(b) in Brooklyn.	B . Within NYPD Guidelines
C . PO Jeffrey Chin	Abuse: Police Officer Jeffrey Chin entered § 87(2)(b) in Brooklyn.	C . Within NYPD Guidelines
D . PO Sandro Tocaciu	Abuse: Police Officer Sandro Tocaciu entered § 87(2)(b) in Brooklyn.	D . Within NYPD Guidelines
E . PO Jeffrey Chin	Abuse: Police Officer Jeffrey Chin searched § 87(2)(b) in Brooklyn.	E . Substantiated
F . PO Jeffrey Chin	Abuse: Police Officer Jeffrey Chin failed to provide § 87(2)(b) with a business card.	F . Substantiated
G . PO Elizbeth Torres	Abuse: Police Officer Elizbeth Torres forcibly removed § 87(2)(b) to the hospital.	G . Within NYPD Guidelines
H . PO Emma Larrea	Abuse: Police Officer Emma Larrea forcibly removed § 87(2)(b) to the hospital.	H . Within NYPD Guidelines
I . PO Jeffrey Chin	Abuse: Police Officer Jeffrey Chin disseminated information regarding § 87(2)(b) medical status.	I . Substantiated

Case Summary

On June 28, 2023, § 87(2)(b) filed this complaint with the CCRB by phone.

On November 19, 2022, at approximately 6:20 p.m., § 87(2)(b) was in his home located at § 87(2)(b) in Brooklyn talking loudly on the phone when an employee from his building told him he was making too much noise and called the police. PO Elizabeth Torres and PO Emma Larrea of the 83rd Precinct, arrived at the location, went to § 87(2)(b) apartment, and entered (**Allegations A and B: Abuse of Authority, within NYPD guidelines**). PO Larrea and PO Torres handcuffed § 87(2)(b) as PO Jeffrey Chin, PO Sandro Tocaciu, PO Oleg Farniev, and PO Maode Lin of the 83rd Precinct arrived at the location. PO Chin and PO Tocaciu entered the apartment to close the door (**Allegations C and D: Abuse of Authority, within NYPD guidelines**). PO Chin grabbed § 87(2)(b) wallet and searched it for his ID (**Allegation E: Abuse of Authority, substantiated**) and did not provide § 87(2)(b) with a business card (**Allegation F: Abuse of Authority, substantiated**).

§ 87(2)(b) was brought downstairs to the ambulance and was removed to § 87(2)(b) Center (**Allegations G and H: Abuse of Authority, within NYPD guidelines**). On the way out of the building, PO Chin spoke to a worker at the front desk and disclosed information from § 87(2)(b) medical history (**Allegation I: Abuse of Authority, substantiated**).

This incident resulted in no summons or arrest.

The investigation obtained five body-worn camera videos (**BR 01: videos, BR 02 – BR 06: summaries**).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Elizabeth Torres entered § 87(2)(b) in Brooklyn.

Allegation (B) Abuse of Authority: Police Officer Emma Larrea entered § 87(2)(b) in Brooklyn.

§ 87(2)(b) stated (**BR 07**) that two female officers and three male officers came inside his apartment, handcuffed him against the wall, and took him to § 87(2)(b) Center. § 87(2)(b) did not recall additional details about this incident.

PO Torres' body-worn camera footage (**BR 08: video, BR 03: summary**) shows at 1:20 minutes, PO Torres and PO Larrea approaching the front desk of § 87(2)(b) building and obtaining directions to his apartment. At 4:30 minutes, PO Torres and PO Larrea encounter § 87(2)(b) in the hallway on the § 87(2) floor of the building. PO Torres says, "Stay over there," and § 87(2)(b) walks away. PO Torres and PO Larrea follow § 87(2)(b) to his apartment. PO Torres enters the threshold of the apartment and instructs § 87(2)(b) to come into the hallway. § 87(2)(b) refuses and PO Torres and PO Larrea enter the apartment and § 87(2)(b) explains that he was having a drink and talking to himself in his apartment. § 87(2)(b) becomes upset and asks the officers to leave. At 5:30 minutes, PO Torres and PO Larrea grab § 87(2)(b) arms and walk him to the hallway immediately outside the apartment where they place him against the wall and handcuff him.

PO Torres (**BR 09**) and PO Larrea (**BR 10**) consistently explained that they entered the apartment due to knowledge of § 87(2)(b) psychiatric or emotionally disturbed person history, that they knew he had a violent history, and that they were also aware of a previous incident in which § 87(2)(b) cut his wrists. This knowledge was gained from personal experiences with § 87(2)(b) and from the information gathered from the 911 app. PO Torres and PO Larrea handcuffed § 87(2)(b) for safety reasons while they waited for EMS to arrive. PO Larrea added (**BR 10**) that she believed § 87(2)(b) was a danger to himself or others because he was acting erratic by running to his apartment. PO Larrea knew that if § 87(2)(b) closed the door, he would not open it again. PO Larrea did not know whether § 87(2)(b) would go to the kitchen, grab a knife, and cut himself again.

PO Torres (**BR 09**) and PO Larrea (**BR 10**) consistently cited the information provided in

Event § 87(2)(b) (BR 11) which shows that the assignment came over the radio as an ambulance case: emotionally disturbed person/inside. Dispatch informed officers that there was an AIDED male who was schizophrenic and screaming at people who was violent but there were no weapons or injuries. Two minutes later, dispatch added that the male, § 87(2)(b) had access to weapons. No additional information was provided regarding § 87(2)(b) being violent.

In People v. Rodriguez, 77 A.D. 3d 280 (2010) (BR 12), the court found that officers were permitted to make a warrantless entry of a premises when the officers reasonably believed that there was an emergency which required immediate assistance for the protection of life or property, and that there was a reasonable basis to associate the premises with the emergency at hand.

§ 87(2)(g)

it is recommended that **Allegations A and B** be closed *within NYPD guidelines*.

Allegation (C) Abuse of Authority: Police Officer Jeffrey Chin entered § 87(2)(b) in Brooklyn.

Allegation (D) Abuse of Authority: Police Officer Sandro Tocaciu entered § 87(2)(b) in Brooklyn.

Allegation (E) Abuse of Authority: Police Officer Jeffrey Chin searched § 87(2)(b) in Brooklyn.

Allegation (F) Abuse of Authority: Police Officer Jeffrey Chin failed to provide § 87(2)(b) with a business card.

§ 87(2)(b) stated (BR 07) that two female officers and three male officers went into his apartment. The investigation determined that PO Chin and PO Tocaciu were the male officers that entered § 87(2)(b) home.

PO Chin's body-worn camera footage (BR 13: video, BR 06: summary) shows at 3:36 minutes, PO Chin approaching the doorway of § 87(2)(b) apartment making a statement about § 87(2)(b) keys to PO Larrea. § 87(2)(b) door is propped open with a large bucket. PO Chin grabs the keys which are in plain view on top of the kitchen table. PO Chin goes to the door and checks that the key works. At 4:17 minutes, PO Chin asks PO Larrea whether they have § 87(2)(b) wallet. PO Chin walks to the table and picks up § 87(2)(b) wallet. PO Chin takes § 87(2)(b) ID out of the wallet and gives it and the wallet to PO Larrea.

PO Chin explained (BR 14) that he went into § 87(2)(b) apartment and grabbed the keys so that he could lock the door because § 87(2)(b) was going to the hospital. § 87(2)(b) did not request PO Chin to lock his door and did not request his wallet. PO Chin took it upon himself to lock the door so no one would break in while § 87(2)(b) was not there. PO Chin grabbed the wallet so § 87(2)(b) could bring it to the hospital and so he could have his ID, which the hospital or EMS would typically ask for. No one from medical had asked for the ID at that time. PO Chin stated he did not need consent to enter the apartment because § 87(2)(b) was detained for his health and well-being and § 87(2)(b) could not go into the apartment himself to retrieve his belongings because he was handcuffed. PO Chin opened the wallet to obtain § 87(2)(b) ID and gave it to either PO Larrea or PO Torres. PO Chin did not offer a business card.

PO Tocaciu's body-worn camera footage (BR 15: video, BR 05: summary) shows at 3:40 minutes, PO Tocaciu entering the threshold of the apartment and facing the door as PO Chin checks the key. At 4:00 minutes, PO Tocaciu returns to the hallway.

PO Tocaciu was not interviewed because his statement would not have affected the recommended disposition.

In People v. Molnar, 98 N.Y.2d 328 (2002) (BR 16) the court affirmed that the touchstone of the Fourth Amendment is reasonableness and that the Fourth Amendment is not violated every

time police enter a private premises without a warrant. Three prerequisites to invoke the emergency exception to the warrant requirement include reasonable grounds to believe that there is an emergency at hand and there is an immediate need for officer assistance to protect life or property, that the search must not be primarily motivated by the intent to arrest or seize evidence, and that there must be some reasonable basis to associate the emergency with the area or place to be searched.

In People v. Cosme, 48 N.Y.2d 286 (1979) (**BR 17**), the court found that officers may conduct a warrantless search of a premises when they have received voluntary consent by a party who has authority over the premises searched.

NYC Administrative Code § 14-174 (**BR 18**) and NYPD Administrative Guide procedure 304-11 (**BR 19**) state that officers are to offer a business card at the conclusion of a law enforcement activity including the search of a home, for activities that do not result in an arrest or summons.

§ 87(2)(g) body-worn camera shows that PO Tocaciu only entered the threshold of the apartment and appeared to examine the door, § 87(2)(g) (g) it is recommended that **Allegations C and D** be closed *within NYPD guidelines*.

§ 87(2)(g) is it recommended that **Allegation E** be *substantiated*. § 87(2)(g) PO Chin searched § 87(2)(b) wallet, which was inside his home and not on his person, § 87(2)(g) it is recommended that **Allegation F** be *substantiated*.

Allegation (G) Abuse of Authority: Police Officer Elizbeth Torres forcibly removed § 87(2)(b) to the hospital.

Allegation (H) Abuse of Authority: Police Officer Emma Larrea forcibly removed § 87(2)(b) to the hospital.

It was undisputed that § 87(2)(b) was taken to § 87(2)(b) Center. The prehospital care report (**BR 20**) stated that § 87(2)(b) was found alert and oriented as he was escorted out of the lobby by NYPD. § 87(2)(a) – PHL 18(6)

PO Torres' body-worn camera (**BR 08: video, BR 03: summary**) shows at 12:18 minutes, PO Torres and PO Larrea meeting with § 87(2)(b) outside of § 87(2)(b) PO Torres explains to EMT § 87(2)(b) that they got a call that § 87(2)(b) was yelling at people, has bipolar, depression, panic attacks, and schizophrenic and he was drinking tonight. PO Torres further states that § 87(2)(b) is not known to be violent but was put in handcuffs because he was getting rowdy. EMT § 87(2)(b) says she will take him to § 87(2)(b) Center.

PO Torres stated (**BR 09**) that it was a mutual decision between the officers, EMS, and § 87(2)(b) to have § 87(2)(b) go to the hospital. § 87(2)(b) willingly went to the hospital and the handcuffs were taken off in the ambulance. No one from the NYPD escorted § 87(2)(b) to the hospital.

PO Larrea stated (**BR 10**) that it was EMS' decision to take § 87(2)(b) to the hospital.

EMT § 87(2)(b) stated (**BR 21**) that he and her partner decided that § 87(2)(b) needed to go to the hospital because he was drinking an unknown amount of alcohol, was behaving "with misconduct" toward others, and being a threat toward himself and others. EMT § 87(2)(b) added

that § 87(2)(b) was feeling depressed and wanted to go back to his country factored into the decision as well as the consumption of an unknown amount of alcohol which added to the need for an emergency psychiatric evaluation.

Per Event § 87(2)(b) (BR 11), EMS was dispatched immediately after the 911 call came over.

NYPD Patrol Guide procedure 221-13 (BR 22) states that officers may take a person who is apparently mentally ill or temporarily deranged into custody when they are conducting themselves in a way an officer reasonably believes is likely to result in serious injury to themselves or others.

§ 87(2)(g)

it is recommended that **Allegations G and H** be closed *within NYPD guidelines*.

Allegation (I) Abuse of Authority: Police Officer Jeffrey Chin disseminated information regarding § 87(2)(b) medical status.

§ 87(2)(b) was not present when PO Chin spoke to the employee at the front desk regarding his prior medical history after § 87(2)(b) was escorted out of the building.

PO Chin's body-worn camera (BR 13: video, BR 06: summary) shows at 8:10 minutes, PO Chin approaching the front desk of § 87(2)(b) building to speak with an employee. There are several civilians waiting at the desk. PO Chin provides his shield number to the employee and states, "That was the same guy who cut his wrists, right?" and she acknowledges that it was. The employee says, "That was a long time ago," and PO Chin says, "That was like two months ago [...]. I just remember there was blood everywhere," and PO Chin leaves the building.

PO Chin stated (BR 14) that he wanted to re-confirm who they were dealing with, so he asked if § 87(2)(b) was the same individual they had dealt with before who had cut his wrists in the past, and the employee said yes. § 87(2)(b) did this for medical purposes, because he wanted to be able to tell EMS that § 87(2)(b) had tried to kill himself in the past so that § 87(2)(b) could receive better treatment and to prevent it from happening again. It was PO Chin's impression that the staff member would have known that § 87(2)(b) had previously cut his wrists and believed that the building staff had called the police.

NYPD Administrative Guide procedure 304-15 (BR 23), the guidelines on the Department's confidentiality policy, states that when disclosing information from an information system to others it may be done so only as required in the execution of lawful duty and these guidelines apply to the oral transmission of information contained in any Department information system as well.

§ 87(2)(g)

it is recommended that **Allegation I** be *substantiated*.

Civilian and Officer CCRB Histories

- § 87(2)(b)
§ 87(2)(b)
■ § 87(2)(b)
§ 87(2)(b)
■
- PO Torres has been a member of service for two years and named a subject in three additional CCRB complaints and six allegations, two of which were substantiated.

- 202206079 involved two substantiated allegations of discourteous words. The Board recommended Command Discipline A and the NYPD has yet to impose discipline.
- PO Larrea has been a member of service for two years and named a subject in two additional CCRB complaints and five allegations. To date these investigations are still active.
- PO Chin has been a member of service for 7 years and named a subject in four additional CCRB complaints and 11 allegations, one of which was substantiated.
 - 202106404 involved a substantiated allegation of a discourteous word. The Board recommended Command Discipline A and the NYPD imposed Command Discipline A.
- PO Tocaciu has been a member of service for two years and this is the first complaint to which he has been named a subject.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of December 22, 2023, the New York City Comptroller's Office has no record of a Notice of Claim being filed regarding this incident (**BR 25**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 11

Investigator:	<u>Kelly Lyon</u>	<u>SI Kelly Lyon</u>	<u>1/24/2024</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Edwin Pena</u>	<u>IM Edwin Pena</u>	<u>01/24/24</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date